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Attorneys for Plaintiff
VIA LICENSING ALLIANCE LLC
(FKA Via Licensing Corporation)

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/12/2025
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

VIA LICENSING ALLIANCE LLC (FKA VIA LICENSING CORPORATION), Plaintiff, v. HP INC., Defendant.	Case No.: CGC-24-614454 **DECLARATION OF KIRBY HSU IN SUPPORT OF PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION FOR AN ORDER MODIFYING PROTECTIVE ORDER TO PERMIT SUBMISSION TO HONG KONG COURT** Dept. 302 Date: March 25, 2025 Time: 9:00 a.m. Trial Date: May 5, 2025 Complaint Filed: May 8, 2024

I, Kirby Hsu, declare as follows:

1. I am an attorney at the law firm Willenken LLP and counsel of record for Plaintiff Via Licensing Alliance LLC in this action. I make this declaration in support of Via's opposition to Defendant HP, Inc.'s motion for an order to modify the Protective Order.

2. On February 24, 2025, HP's counsel Timothy Miller emailed me about HP's request that this Court issue a letter rogatory requesting judicial assistance in connection with HP's intent to take the deposition of Sven Torringer, a former Via employee, in Hong Kong. Mr. Miller requested Via's consent for HP to submit Via's confidential documents to the Hong Kong court when HP submits the as-yet unissued letter rogatory. He stated that the confidential documents were attached as exhibits to HP's prior motion to continue trial. Because of the sensitive and confidential nature of the information and concerns about whether and to what extent the documents would be protected from public disclosure, I objected on Via's behalf to the submission or disclosure of its confidential documents to the Hong Kong court.

3. On February 26, 2025, Mr. Miller and I met and conferred. During the discussion, Mr. Miller, when pressed about confidentiality concerns, provided only his secondhand "understanding," from conversations with HP's Hong Kong counsel, of how the Hong Kong court handles documents submitted with a letter rogatory. But when I asked him for assurances that the documents would not be publicly disclosed by the Hong Kong court, Mr. Miller counsel refused to provide any.

4. In subsequent emails, I again asked Mr. Miller for HP's assurance that the documents would not be publicly disclosed by the Hong Kong court, but he again refused to provide any assurance. Exhibit 1 is a true and correct copy of an email chain that includes the emails described in paragraphs 2 and 4.

5. Exhibit 2 is a true and correct copy of the declaration of Kyle Niemi in support of Plaintiff's application to seal (Mar. 4, 2025).

///

///

///

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct, and that this declaration is executed on March 12, 2025 at Los Angeles, California.

KIRBY HSU

EXHIBIT 1

Lily Tom

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Wednesday, February 26, 2025 2:09 PM
To: Kirby Hsu
Cc: Patrick Freeman; Paul Loh
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Kirby,

I know I suggested a cessation to the back and forth on this issue, but I am confused. You told me on our call that Via is most concerned about public disclosure of its AAC Patent License Agreement. But isn't Via's standard form AAC PLA a matter of public record? For example, Here's a publicly available copy: https://www.sec.gov/Archives/edgar/data/1649009/000121390020023370/ea125930ex10-9_siyatamobile.htm

I assume you will disclose this fact to the Court.

Regards,
Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
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From: Kirby Hsu <khsu@willenken.com>
Date: Wednesday, February 26, 2025 at 1:34 PM
To: Timothy Miller <tmiller@vallemakoff.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: RE: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Tim, your response to my question speaks volumes.

Kirby

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Wednesday, February 26, 2025 12:55 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>; Paul Loh <ploh@willenken.com>
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Kirby,

I will not engage in further back and forth with you on this. You did misrepresent our conversation. I laughed because you appeared to be asking that HP somehow indemnify Via for any harm resulting from public disclosure of confidential material by the Hong Kong court because, you said, your client does not trust the Hong Kong court. That is absurd.

I can assure you that HP will follow the direction of the San Francisco Superior Court and applicable rules and procedure of the courts in Hong Kong.

This is yet another example of Via attempting to have its cake and eat it too with respect to the continuance of the trial date. Via is sandbagging HP in document production (it has not produced any documents for nearly a month since its initial production despite promises of a "rolling" production). Now it is obstructing and delay the standard process to secure Sven Torringer's testimony in Hong Kong. All while at the same time categorically refusing to even consider any continuance of the trial date, which would allow the parties time to work out these types of issues.

We will seek the guidance of the San Francisco Superior Court.

Regards,
Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
tmiller@vallemakoff.com
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From: Kirby Hsu <khsu@willenken.com>
Date: Wednesday, February 26, 2025 at 12:44 PM
To: Timothy Miller <tmiller@vallemakoff.com>

Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: RE: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Tim,

I didn't misrepresent our conversation. When I asked for the assurance, you laughed about providing indemnity. Via is asking for assurance because your "understanding" is meaningless given the sensitivity of the information.

To avoid any confusion, please answer this question with an unqualified yes: Can you assure that the Hong Kong court will seal the documents or otherwise protect them from public disclosure or access?

Kirby

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Wednesday, February 26, 2025 12:29 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>; Paul Loh <ploh@willenken.com>
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Kirby,

Thank you for the follow up. Via's objection is noted. I did not "concede[] that [I] cannot assure Via that the documents would be sealed by the Hong Kong court, or accorded similar protection from public access or disclosure." I explained to you in my emails below my understanding of the confidentiality of the procedure before the Hong Kong court based on advice from HP's Hong Kong counsel. As I told you on our call today, we will request an order from the San Francisco Superior Court modifying the December 19, 2024, Protective Order in our action to permit disclosure to the Hong Kong court.

Regards,
Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
tmiller@vallemakoff.com
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From: Kirby Hsu <khsu@willenken.com>
Date: Wednesday, February 26, 2025 at 12:23 PM
To: Timothy Miller <tmiller@vallemakoff.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: RE: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Tim,

Further to our call, I write to confirm Via's unequivocal objection to the filing in Hong Kong of any of the documents you described. Those documents contain confidential and highly sensitive proprietary information. Other than repeating what you were purportedly told by Hong Kong counsel, nothing in the legal reference you provided indicates that it's necessary to submit those documents. Moreover, when I specifically asked, you conceded that you cannot assure Via that the documents would be sealed by the Hong Kong court, or accorded similar protection from public access or disclosure. I reiterate that disclosure of the documents would cause Via irreparable harm. Via will hold your client and your firm directly responsible for any such breach.

Regards,
Kirby

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Tuesday, February 25, 2025 9:51 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>; Paul Loh <ploh@willenken.com>
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Kirby,

Further to our email exchange below, HP's interest in the Hong Kong proceeding is to secure the sworn testimony of Sven Torringer as quickly and efficiently as possible. Based on advice from HP's Hong Kong counsel, we believe it is necessary and appropriate to submit the documents discussed below that have been designated as confidential in the Protective Order to the Hong Kong court. That belief is based on the following:

1. The application to seek an order from the Hong Kong Court to satisfy the Letter Rogatory must be supported by an affirmation (the "Hong Kong Affirmation"). This affirmation must address certain requirements under Hong Kong law. The discussion below refers to the leading commentary on the Rules of High Court (the "RHC"), Hong Kong Civil Procedure (Hong Kong White Book) 2025 (the "White Book"). For your convenience, we have attached the cited sections of the White Book.

2. As noted in the White Book, the Hong Kong Court:

"has the discretion to refuse to permit the request, or to limit the scope of a request ... Indeed, in certain cases the court will be required to limit the scope of the request to ensure that it adheres to the statutory limitations upon the request set out in the Evidence Ordinance and in the common law" (at para. 70/1/21);

"will not exercise its discretion to make the requested order if it is satisfied that the application would be frivolous, vexatious or an abuse of the process of the court… As to circumstances amounting to an abuse of process, it will depend upon the facts of each particular case" (at para. 70/1/23); and

"will act upon the basis that it ought to follow the request so far as possible, but is obliged to decline to follow its terms in so far as it is not proper, permissible or practicable under Hong Kong law" (at para. 70/1/24);

3. In addition, the application to the Hong Kong Court "must be made ex parte to a Master". In turn, this imposes a "duty to make full and frank disclosure" which requires the applicant to "disclose all material evidence" or otherwise risk having the application set aside. (at para. 70/1/21).

4. Thus, in order to satisfy the various legal requirements and to discharge the duty of full and frank disclosure, it will be necessary for the Hong Kong Affirmation to set out the background facts and relevant issues in the proceedings in the San Francisco Superior Court proceeding and to disclose all material evidence. This is standard practice for these type of applications to the Hong Kong Court and allows the Hong Kong Court to confirm that the relevant legal requirements are satisfied and to exercise its discretion to grant (or decline) the requests set out in the Letter of Request.

We previously explained (in my email below) the confidentiality of the proceedings in the Hong Kong Court.

Failure to adhere to this standard practice or not to comply with the process mandated by the RHC could result in a delay in these proceedings.

We can discuss further tomorrow during our 10 a.m. meet and confer.

Thank you.

Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
tmiller@vallemakoff.com
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From: Timothy Miller <tmiller@vallemakoff.com>
Date: Tuesday, February 25, 2025 at 5:30 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

Thanks you. I appreciate it. I will send a Zoom invite.

Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
tmiller@vallemakoff.com
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From: Kirby Hsu <khsu@willenken.com>
Date: Tuesday, February 25, 2025 at 5:29 PM
To: Timothy Miller <tmiller@vallemakoff.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: RE: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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I can be available at 10 tomorrow.

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Tuesday, February 25, 2025 5:13 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>; Paul Loh <ploh@willenken.com>
Subject: Re: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Kirby,

We would like to meet and confer on this issue tomorrow (Wednesday) because we intend to file our motion for the issuance of the letter rogatory as soon as possible. If Via does not consent to the disclosure to the Hong Kong court described below then we will be forced to include in our motion a request to the San Francisco Superior Court for an order permitting us to make the disclosure to the Hong Kong court.

I am available any time tomorrow at or after 9:30 a.m. and before 3 pm. Please let me know what works.

Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
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tmiller@vallemakoff.com
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From: Kirby Hsu <khsu@willenken.com>
Date: Tuesday, February 25, 2025 at 4:47 PM
To: Timothy Miller <tmiller@vallemakoff.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>, Paul Loh <ploh@willenken.com>
Subject: RE: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

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Tim,

Via does not consent to the disclosure of the documents to the Hong Kong court. The documents contain sensitive, confidential information, and we do not understand your basis for disclosing them to the Hong Kong court. We should meet and confer—let me know if you have availability Thursday.

Regards,
Kirby

From: Timothy Miller <tmiller@vallemakoff.com>
Sent: Monday, February 24, 2025 4:47 PM
To: Kirby Hsu <khsu@willenken.com>
Cc: Patrick Freeman <pfreeman@vallemakoff.com>; Paul Loh <ploh@willenken.com>
Subject: [EXTERNAL] Via Licensing Alliance v. HP (SF Sup Ct Case No. CGC-24-614454): Meet and Confer re Protective Order

CAUTION: This email originated from outside of the organization. Do not click links or open attachments unless you recognize the sender and know the content is safe.

Hi Kirby,

HP intends to file a motion for the issuance by the Court in the above-referenced action of a letter rogatory to the High Court of Hong Kong requesting international judicial assistance to secure the sworn testimony of Sven Torringer in Hong Kong. During our call on February 11, 2025, you informed me that Via would not oppose HP's request for a letter rogatory to the Court. I am writing to request Via's written consent under Section 7.k of the Stipulated Protective Order to the filing with the Hong Kong court and disclosure to Mr. Torringer in connection with such filing of certain documents produced by Via and designated as Confidential under the Protective Order.

As noted above, HP intends to file a motion with the San Francisco Superior Court for the issuance of a letter rogatory to the High Court of Hong Kong requesting international judicial assistance to secure the sworn testimony of Sven Torringer in Hong Kong (the "SF Motion"). In connection with the SF Motion, HP will submit the documents produced by Via that it submitted with its motion to continue the trial date and a copy of the AAC Patent License Agreement between Via and Kingston Technology Company dated December 15, 2020 (the "AAC PLA"). We understand that the SF Motion will be considered a discovery motion. We intend to make the filing in accordance with the Protective Order (see Section 18 of the Protective Order), the California Rule of Court and guidance on the San Francisco Superior Court's website related to discovery motions.

Once the San Francisco Superior Court issues the letter rogatory, HP's counsel in Hong Kong (O'Melveny) intends to make a request to the High Court of Hong Kong for international judicial assistance in securing Mr. Torringer's testimony based on the letter rogatory (the "HK Motion"). In connection with HK Motion, HP intends to submit the same documents produced by Via that it submitted with the motion to continue the trial date (and which we intend to submit with the SF Motion). HP also intends to submit a copy of the AAC PLA. As discussed in more detail below, it is our understanding based on advice from HP's counsel in Hong Kong that the Hong Kong court and Mr. Torringer (and Mr. Torringer's counsel, if he retains counsel) will have access to those materials but that the materials will otherwise be confidential with the Hong Court.

Based on advice from HP's counsel in Hong Kong, our understanding of the process in the High Court of Hong Kong is as follows:

1. Any affirmation ("Hong Kong Affirmation") filed with the High Court of Hong Kong (the "Hong Kong Court") for the purposes of supporting an application to seek an order from the Hong Kong Court to satisfy a letter rogatory issued by the San Francisco Superior Court would not be made available to the public and would essentially be kept confidential.

2. Under the Rules of the High Court of Hong Kong (the "RHC"), affirmations filed with the Hong Kong Court are subject to strict access controls and are not generally available for public inspection.

3. Order 119, rule 5 of the RHC provides that the Hong Kong Affirmation must be kept confidential and in the custody of the Hong Kong Court "… in a place to which the public has no access or in such other place as the judge may authorize and shall not be opened, have its content removed, be copied or be destroyed except by order of a judge".

4. While Order 63, rule 4(1) of the RHC permits public access to certain court documents such as writs of summons, originating summons, court judgments and certain orders, any affirmation or affidavit (such as the affirmation HP intends to file in the Hong Kong Court) does not fall within this category of publicly accessible court documents.

5. Order 63, rule 4(2) of the RHC provides for the inspection and obtaining of copies of any affirmation or affidavit by the parties involved in the relevant cause or matter. Order 121, rule 13(1) of the RHC confirms that such powers are only granted to "a party to any proceedings", "the party's solicitor" or the "Secretary for Justice".

6. Order 63, rule 4(1)(c) of the RHC provides that non-parties to the relevant cause or matter may inspect and obtain copies of affirmations "with the leave of the (Hong Kong High) Court, which may be granted on an application made ex parte".

7. The leading commentary on the RHC, Hong Kong Civil Procedure (Hong Kong White Book) 2025 ("White Book"), explains that Order 63, rule 4 "makes an important distinction between the right of search and inspection enjoyed by a party to a cause or matter which is unrestricted in respect of all documents, including affidavits filed in that cause or matter with a view to its commencement, and the right of search and inspection enjoyed by a

member of the public, which is restricted to the documents particularly specified in r.4(1)(a) and 4(1)(b). The effect of this restriction is to exclude the right of the public to search for and inspect documents such as affidavits." This position is also reaffirmed by Order 121, rule 13(2) of the RHC as follows:

> "(2) Except as provided in paragraph (1), if a document is filed in the Registry in any proceedings under the Ordinance (other than an order made in open court) –
> a) the document is not open to inspection by any person without leave of the Court; and
> b) no copy of the document, or of an extract from the document, may be taken by, or issued to, any person without leave of the Court."

We understand that pursuant to these authorities, third parties (including members of the public) would have no right to access, inspect, or obtain copies of the Hong Kong Affirmation without first obtaining the leave of the Hong Kong High Court.

9. There are very limited grounds upon which the Hong Kong Court would grant leave for a third party to access any affirmation or affidavit. The White Book commentary notes: "leave of the court may be obtained for search and inspection by a person not a party on a written application to the Registrar, but it is conceived that very cogent reasons would be required before such leave is granted."

This is our understanding of the confidentiality of the process in the Hong Kong court. Of course, we are not giving you or Via legal advice and Via should feel free to seek its own counsel in Hong Kong.

Please let me know by reply email by the close of business tomorrow, Tuesday, February 25, 2025, whether Via will consent to the disclosure to the Hong Kong Court of the documents produced by Via that HP submitted to the San Francisco Superior Court with its motion to continue trial along with a copy of the AAC PLA. We will consider such reply email to constitute written consent by Via to the disclosure under Section 7.k of the Protective Order.

Thank you.

Regards,
Tim

Timothy A. Miller
Valle Makoff LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065
Tel: 650-966-5113 | Fax: 650-240-0485
tmiller@vallemakoff.com
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EXHIBIT 2

Paul J. Loh (Bar No. 160541)
ploh@willenken.com
Ashley L. Kirk (Bar No. 291012)
akirk@willenken.com
Kirby Hsu (Bar No. 312535)
khsu@willenken.com
WILLENKEN LLP
707 Wilshire Blvd., Suite 3850
Los Angeles, California 90017
Telephone: (213) 955-9240
Facsimile: (213) 955-9250

Attorneys for Plaintiff
VIA LICENSING ALLIANCE LLC
(FKA Via Licensing Corporation)

ELECTRONICALLY
FILED
Superior Court of California,
County of San Francisco
03/04/2025
Clerk of the Court
BY: JAMES FORONDA
Deputy Clerk

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF SAN FRANCISCO

VIA LICENSING ALLIANCE LLC (FKA VIA LICENSING CORPORATION), Plaintiff, v. HP INC., Defendant.	Case No.: CGC-24-614454 **DECLARATION OF KYLE NIEMI IN SUPPORT OF PLAINTIFF'S APPLICATION TO SEAL DEFENDANT'S MOTION TO CONTINUE TRIAL** Trial Date: May 5, 2025 Complaint Filed: May 8, 2024

I, Kyle Niemi, declare as follows:

1. I am the General Counsel at Via Licensing Alliance LLC. I make this declaration in support of Via's Application to Seal HP, Inc.'s Motion to Continue Trial.

2. Via is the administrator for licensors that own or have rights to certain patents.

3. Certain of the exhibits to the Declaration of Timothy A. Miller in Support of HP's Motion to Continue Trial ("Miller Declaration"), as well as references to information from those exhibits in HP's Motion to Continue Trial, contain highly confidential information of Via.

4. Exhibits B, E, F, J, K, M, and N to the Miller Declaration are emails from the same email thread among Via personnel. This email thread contains internal discussion by Via personnel regarding confidential terms of the AAC Patent License Agreement ("PLA") dated December 15, 2020, between Via and nonparty Kingston Technology Company; a nonpublic royalty payment amount; and Via's negotiation strategies for its decision whether and on what terms it would consent to a novation or assignment.

5. Exhibits G, H, I, and L to the Miller Declaration are emails from the same email thread between Via and Kingston. This email thread contains discussion of confidential terms of the PLA.

6. Exhibit R to the Miller Declaration contains confidential information as to a nonpublic payment amount under the PLA.

7. Via considers information concerning specific licensees, payments, and negotiation strategies to be highly confidential, particularly in light of its work administering patent licensing pools. Via closely controls access to this confidential information, which is not shared with competitors or with the public generally. Via shares information about specific licenses and payments only when there are applicable contractual confidentiality and nondisclosure obligations. In addition, Via maintains written confidentiality policies for its employees.

8. Via would be harmed by the public disclosure of such information, which would have economic value to competitors and potentially deter potential licensees from working with Via. That is, public disclosure of such information would harm Via's ability to compete for

future agreements with potential licensees or for the formation of other licensing pools, because disclosure would be contrary to the expectation and practice in the industry to keep such information confidential.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Dated: March 4, 2025

Kyle Niemi

PROOF OF SERVICE

STATE OF CALIFORNIA
COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 707 Wilshire Boulevard, Suite 4100, Los Angeles, CA 90017.

On the date below, I served the document(s) described as:

DECLARATION OF KYLE NIEMI IN SUPPORT OF PLAINTIFF'S APPLICATION TO SEAL DEFENDANT'S MOTION TO CONTINUE TRIAL

on each of the interested parties in this action.

☐ By placing ☐ the original ☐ true copies thereof enclosed in sealed envelopes addressed as follows:

Timothy A. Miller, Esq.
Patrick T. Freeman, Esq.
VALLE MAKOFF LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065-1422
Telephone: (650) 966-5113
Facsimile: (650) 240-0485
Email: tmiller@vallemakoff.com
pfreeman@vallemakoff.com

Attorneys for Defendant HP INC.

☐ **(BY U.S. MAIL)** I placed such envelope in the mail at Los Angeles, California. The envelope was mailed with postage thereon fully prepaid. I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with U.S. Postal Service on that same day with postage thereon fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

☒ **(VIA ELECTRONIC SERVICE)** The document was served via electronic transfer upon the parties listed using their e-mail addresses as shown in the service list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

☒ **(STATE)** I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on **March 4, 2025**, at Los Angeles, California.

Lisa S. Gibbons
(Type or Print Name)

Lisa Gibbons
Signature

PROOF OF SERVICE

STATE OF CALIFORNIA
COUNTY OF LOS ANGELES

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is 707 Wilshire Boulevard, Suite 4100, Los Angeles, CA 90017.

On the date below, I served the document(s) described as **DECLARATION OF KIRBY HSU IN SUPPORT OF PLAINTIFF'S OPPOSITION TO DEFENDANT'S MOTION FOR AN ORDER MODIFYING PROTECTIVE ORDER TO PERMIT SUBMISSION TO HONG KONG COURT** on each of the interested parties in this action.

☐ By placing ☐ the original ☐ true copies thereof enclosed in sealed envelopes addressed as follows:

Timothy A. Miller, Esq.
Patrick T. Freeman, Esq.
VALLE MAKOFF LLP
303 Twin Dolphin Drive, Suite 600
Redwood City, California 94065-1422
Telephone: (650) 966-5113
Facsimile: (650) 240-0485
Email: tmiller@vallemakoff.com
pfreeman@vallemakoff.com

Attorneys for Defendant HP INC.

☐ **(BY U.S. MAIL)** I placed such envelope in the mail at Los Angeles, California. The envelope was mailed with postage thereon fully prepaid. I am "readily familiar" with the firm's practice of collection and processing correspondence for mailing. Under that practice it would be deposited with U.S. Postal Service on that same day with postage thereon fully prepaid at Los Angeles, California in the ordinary course of business. I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date is more than one day after date of deposit for mailing in affidavit.

☒ **(VIA ELECTRONIC SERVICE)** The document was served via electronic transfer upon the parties listed using their e-mail addresses as shown in the service list. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

☒ **(STATE)** I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct.

Executed on **March 12, 2025**, at Los Angeles, California.

Lily Tom
(Type or Print Name)

Lily Tom
Signature